

FEDERAL MARITIME COMMISSION

MARINE TRANSPORT LOGISTICS, INC.,

Complainant,

v.

CMA CGM, S.A.,

Respondent.

Docket No. 22-23

Served: October 30, 2023

BY THE COMMISSION: Daniel B. MAFFEI, *Chairman*,
Rebecca F. DYE, Louis E. SOLA, Carl W. BENTZEL, Max
VEKICH, *Commissioners*. *Commissioner* BENTZEL, concurring.
Commissioner VEKICH, concurring.

Order Affirming Denial of Motion

This case is before the Commission on an appeal of an Order of the Administrative Law Judge (ALJ) denying a motion by Respondent CMA CGM, S.A. (CMA) for a Letter of Request to French authorities under the Hague Evidence Convention. CMA, a common carrier headquartered in Marseille, France, claims that French law bars it from providing any documents in response to the requests of Complainant Marine Transport Logistics, Inc. (MTL) under ordinary Federal Maritime Commission (FMC) procedures,

and it asserts that instead Hague Convention procedures must be used.

For the reasons set forth below, we deny the appeal and affirm the ALJ's Order. CMA has failed to show that the ALJ abused her discretion in rejecting CMA's unprecedented demand that it be permitted to provide no documents in response to MTL's discovery requests except through Hague Convention procedures, in a case that involves the shipment of containers from a U.S. port by CMA's U.S. subsidiary. CMA remains free to make objections as to specific requests or documents, on foreign law or other grounds.

I. BACKGROUND

On September 7, 2022, MTL, a Non-Vessel Operating Common Carrier (NVOCC), initiated this case with a Complaint alleging that CMA-CGM (America), L.L.C. (CCA), a Vessel-Operating Common Carrier, had violated 46 U.S.C. § 41102(c) of the Shipping Act of 1984 in connection with the handling of eight containers. Complaint; Order on Respondent's Motion for Letter of Request and Extension of Time, March 28, 2023 (Order) at 2-3. An Amended Complaint adding CCA's parent company, CMA, was filed on December 9, 2022, and on December 29 the ALJ issued an order, following a joint motion, permitting the amendment of the case caption to list only CMA as the Respondent. Order at 2. In the December 29 order, the ALJ noted that as part of the joint motion, CMA had agreed to be responsible for the actions of CCA "and to make available any discovery sought regarding actions by CCA." *Id.*

On March 9, 2023, CMA filed a Motion for Extension of Time and for Compliance with French Law and the Hague Convention. Order at 1. That Motion argued that CMA could not provide documents in response to MTL's pending document requests until CMA had obtained the approval of French authorities under French law. *Id.* at 1-2. With its motion CMA provided a letter from the French Ministry of Finance regarding the requirements of

French law, but CMA did not provide a copy of the document requests with which it was refusing to comply. *Id.* at 1, 3. On March 16, MTL filed a Response to CMA's motion that did not expressly oppose the Motion, but did raise objections. MTL emphasized that CMA had not produced any documents at all, not even basic "demurrage related documents," and that MTL had consented to the substitution of CMA for its U.S. subsidiary as respondent in the case in part based on CMA's assurance that that change would not affect compliance with discovery requests. Order at 1-2; MTL Motion Response at 1-2. In a March 16 Motion for Leave to Reply that the ALJ treated as a reply, CMA argued that the French legal requirements would apply even if its U.S. subsidiary was the only respondent in the case. Order at 2; CMA Motion Reply at 2.

The ALJ denied CMA's Motion in its March 28, 2023 Order. The ALJ concluded that CMA had failed to justify its refusal to produce documents in response to a request made under FMC procedures. Order at 3-4. The Order noted that although the parties had not provided the actual requests at issue, in light of the Complaint's allegations they likely related to container shipments from a U.S. port arranged by two U.S. companies, and that CMA had failed to show, as it had to, that use of the Hague Convention was actually necessary in this case. *Id.* at 3. The ALJ relied on the factors identified in *Societe Nationale Industrielle Aerospatiale v. United States District Court for the Southern District of Iowa*, 482 U.S. 522, 543-44 & n.28 (1987), particularly the interests of the United States, the importance of the discovery to the case, the connection of the materials at issue to the United States, and the apparent lack of such a connection to France. Order at 4.

CMA appealed the ALJ's Order on April 7, 2023, submitting its filing as an Appeal from Discovery Ruling Addressed to Persons and Documents Located in a Foreign Country under 46 C.F.R. § 502.150(d) (Appeal). On April 14, MTL filed a very short Response (Appeal Response), which incorporated by reference its short March 16 Response to CMA's initial Motion. Appeal Response at 1. The Appeal Response again raised objections to CMA's requested relief

but did not directly state that MTL opposed it. *Id.* MTL did note that its document requests were really directed at materials held by CMA's U.S. subsidiary, CCA. *Id.* The regulation under which interlocutory appeals are normally filed is section 502.221, as the ALJ noted in her July 27, 2023 Order staying the case pending this appeal, and that section requires a motion, which was not filed here. In any event, the ALJ appears to have permitted the appeal to proceed. The Appeal and Appeal Response were timely filed under section 502.150(d).

On appeal, CMA claims that because the ALJ's March 28 Order requires production of documents that are "owned and/or located in France," Appeal at 1, and that are "owned by CMA and reside on servers located in France," Order at 3, the Order is inconsistent with French law, and such materials must instead be produced through Hague Convention procedures. Appeal at 1-3, 6-8. CMA relies heavily on the Supreme Court's ruling in *Aerospatiale* and the factors that are evaluated in conducting the "comity analysis" described in that case. *Id.* at 14-19.

II. DISCUSSION

A. Standard of Review

The Commission reviews discovery orders under an abuse of discretion standard. The Commission's rules do not expressly address the standard of review in this context. *See Rana v. Franklin*, FMC No. 19-03, 2022 WL 1744905, at *4 (FMC May 25, 2022); *Kawasaki Kisen Kaisha, Ltd. v. Port Auth. of N.Y. & N.J.*, FMC No. 11-12, 2014 WL 7328475, at *7-8, 2014 FMC LEXIS 35, at *18-19 (FMC Nov. 20, 2014). However, "for situations which are not covered by a specific Commission rule, the Federal Rules of Civil Procedure will be followed to the extent that they are consistent with sound administrative practice." 46 C.F.R. § 502.12. "In reviewing district courts' orders on discovery, the United States Courts of Appeal apply an abuse of discretion standard because a 'narrowly circumscribed' scope of review is consistent with district courts'

‘considerable discretion in managing discovery’ and their ‘broad discretion to impose sanctions for discovery violations under Rule 37.’” *Rana*, 2022 WL 1744905, at *4 (quoting *Parsi v. Daioleslam*, 778 F.3d 116, 125 (D.C. Cir. 2015)) (additional citations omitted).

B. Ordering CMA to Respond to Document Discovery Through Ordinary Commission Procedures Was Not an Abuse of Discretion

In the March 28 Order, the ALJ acted well within her discretion in rejecting CMA’s arguments as insufficient to justify blanket non-compliance with discovery requests in FMC proceedings. Order at 3-4. In her decision, the ALJ relied on cases establishing that the party seeking to avoid discovery under the Federal Rules of Civil Procedure in this context must show that Hague Convention procedures are necessary, *see Luminati Networks Ltd. v. Code200*, Civ. No. 19-396, 2021 WL 2819457, at *2, 2021 U.S. Dist. LEXIS 128634, at *10 (E.D. Tex. Feb. 1, 2021), because a foreign law “actually bars the production or testimony at issue,” *Alfadda v. Fenn*, 149 F.R.D. 28, 34 (S.D.N.Y. 1993). And, the ALJ noted, even where evidence is physically located in a foreign nation, the Hague Convention does not deprive federal courts of authority to order foreign entities before them to produce that evidence. *Aerospatiale*, 482 U.S. at 539-40. It is worth noting that CMA does not question the FMC’s jurisdiction over it. In addition, the Supreme Court emphasized in *Aerospatiale* that Hague Convention procedures are not mandatory or exclusive, but an optional method to obtain evidence where a particular situation calls for it. *Id.* at 540-41.

The ALJ proceeded to evaluate CMA’s request under the five factors identified in *Aerospatiale* and concluded that all of the factors weighed against the request. Order at 4. Specifically, the factors are: (1) the importance to the litigation of the information requested; (2) the degree of specificity of the request; (3) whether the information originated in the United States; (4) the availability of alternative means of securing the information; and (5) the extent

to which noncompliance with the request would undermine important interests of the United States, or compliance with the request would undermine important interests of the state where the information is located. *See* 482 U.S. at 543-44 n.28. The ALJ did not address each factor individually, but emphasized that the discovery requested was important to the case, especially since no documents had been provided; that CMA's refusal to produce any material was overbroad; that there was no indication the requested documents originated in France or were created by French citizens; that CMA was a party to the case and an FMC-regulated entity that could produce the documents through its U.S. subsidiary; and that permitting CMA to refuse to produce any documents in response to MTL's request would "undermine important interests of the United States." Order at 4.

The ALJ's overall analysis of the precedent applicable to CMA's request is correct. In particular, CMA did not show that use of the Hague procedures is necessary. Despite CMA's assertions that the requested documents are "located in France," Order at 3, there is no specific claim here (much less persuasive evidence) that the documents are unavailable in the United States from CMA's U.S. subsidiary. And CMA has not shown that the mere presence of copies of documents in France would be sufficient to bar ordinary discovery here. The U.S. Complainant MTL states that it dealt with CMA's U.S. subsidiary with regard to the shipments at issue, which went from a U.S. port to nations other than France, and as the ALJ noted, there remains no indication that these shipments went to France or included involvement by French residents. *Id.* at 3. As the ALJ also noted, and CMA later confirmed, the documents sought include bills of lading, emails, and other common transport-related documents related to the shipments. *Id.*; Appeal at 16. CMA presented no reason to the ALJ that these materials would not be present in the United States.

The ALJ's overall evaluation of the *Aerospatiale* factors is also correct. Basic document discovery is obviously important to FMC litigation like this case (factor 1), and the conduct of litigation

regarding alleged violations of federal law clearly serves important interests of the United States, while it is difficult to see how reasonable discovery of the documents at issue here would impair important interests of France (factor 5). In addition, while it seems possible that some responsive documents did not originate in the United States, the ALJ was provided with no specific showing that most or even any of them did (factor 3). It seems clear that most or all responsive documents are available through the alternative means of CMA simply producing them, whether through its U.S. subsidiary or not, in the ordinary course (factor 4). The ALJ was unable to analyze the specificity of the document request (factor 2) because CMA failed to provide a copy of the request with its Motion. Although this failure would appear to be a waiver of any CMA claim regarding factor 2, a review of the requests that CMA did belatedly provide with its Appeal indicates that five of the seven requests focus on the eight specific containers described in the Complaint, with only the last two requests seeking documents about similar complaints made to CMA and CMA revenue from demurrage- and detention-related charges. *See* Appeal Exhs. 4-5. CMA did not show that such requests had to be pursued using Hague Convention procedures.

CMA has pointed to no prior FMC proceeding in which the FMC or any court has denied all ordinary document discovery on the basis that CMA urges here. On the contrary, district courts are free to deny requests like the one CMA makes here. *See, e.g., Luminati Networks*, 2021 WL 2819457 (denying a request for issuance of a Hague Convention letter where most of the five *Aerospatiale* factors weighed against the request). Moreover, the ALJ here cited a recent case in which a Florida district court had denied a stay that CMA's U.S. subsidiary had requested on a comparable basis. Order at 3, citing *De Fernandez v. CMA CGM S.A.*, Civ. No. 21-22778, 2022 WL 2713737 (S.D. Fla. July 12, 2022). That case involved claims by Cuban exiles under the Helms-Burton Act and the potential application of French and European Union "blocking statutes," so the context was somewhat different. But in evaluating a request by CMA's U.S. subsidiary to stay the

case on the grounds that the blocking statutes prevented CMA itself from participating, the court did undertake a comity analysis under *Aerospatiale*, finding that the balance of international interests weighed against the requested stay. *See* 2022 WL 2713737, at *9-11. And the court noted that U.S. courts have long been skeptical of claims that such blocking statutes present any real risk to French nationals, as they had been enacted to protect those nationals from overseas discovery and to give them “tactical weapons and bargaining chips in foreign courts.” *Id.* at *6 (citations omitted).

In fact, the apparent role CMA has played in efforts to obtain discovery from its U.S. subsidiary in this case is a point supporting the ALJ’s decision. As MTL notes, its discovery requests are directed at documents maintained by that subsidiary, Appeal Response at 1 – something CMA does not appear to dispute. It is true that CMA, the French parent, was substituted as the only Respondent here, with MTL’s consent. But as the ALJ noted, the December 29, 2022 Order allowing that substitution makes clear that CMA had agreed to “make available any discovery sought regarding actions by” its subsidiary. Order at 2.

MTL also notes that CMA produced the same type of material sought here in response to MTL’s complaint in FMC case 18-07, with no apparent reference to French authorities or prosecution as a result. Appeal Response at 1. The respondent in that case was CMA’s U.S. subsidiary. The parties settled the case after an exchange of initial discovery. *See* FMC No. 18-07, Feb. 18, 2020 Initial Decision Approving Settlement. Here, CMA was put on notice of MTL’s argument about FMC 18-07 by MTL’s Response to CMA’s Motion. *See* Motion Response at 2-4. Yet CMA has provided no specific explanation as to why the prior case was different, including in its Motion Reply. CMA has generally argued that it only became aware of more stringent French legal requirements earlier this year. Order at 2; Appeal at 3-4.

In any event, even without resort to Hague Convention procedures, CMA can still object to specific requests or documents

as beyond the reach of permissible discovery under FMC rules. As to discovery, the Shipping Act directs the FMC to follow the Federal Rules of Civil Procedure to the extent possible, 46 U.S.C. § 41303(a)(2), and the FMC has established extensive rules of practice and procedure at 46 C.F.R. § 502. In particular, section 502.141(e) provides the general standards for permissible discovery, as well as limitations on the frequency and extent of discovery. And section 502.141(j) provides for protective orders. In short, the FMC's existing procedures provide ample protection from impermissible discovery requests, and CMA remains free to invoke the relevant provisions, like any other party before the Commission.

C. CMA's Arguments on Appeal Do Not Show an Abuse of Discretion

In its Appeal of the ALJ's March 28 Order, CMA argues primarily that the use of Hague Convention procedures is required or at least advisable in this case. Appeal at 10-19. But as the ALJ correctly found, CMA has not established the need for such procedures here, Order at 3-4, and its arguments on appeal, though extensive, are unavailing. Once again, CMA cites no direct precedent for the determination it seeks foreclosing ordinary document discovery in an FMC proceeding, or indeed in any comparable federal agency proceeding. Nor does CMA provide evidence showing that all, or even any, of the specific documents MTL seeks are unavailable in the United States.

1. CMA Has Failed to Show That the FMC Lacks the Authority to Order This Discovery

CMA asserts that the French law on which it relies applies even to documents "to be produced by" its U.S. subsidiary if those documents are "owned" or controlled by CMA, so its position is that French law would bar production under the FMC's ordinary procedures even if the U.S. subsidiary was the only respondent in this case. Appeal at 6-8. CMA does not specifically contend that the

law would bar even production of documents held in the United States about CMA's U.S. activities, although that view would appear to be a logical extension of its position. But CMA cites no U.S. authority applying the French law to completely bar such discovery under the Federal Rules of Civil Procedure or in proceedings before a federal agency. CMA also claims that criminal penalties are possible if production would cause substantial harm to essential French interests, yet it concedes that the materials sought here would be very unlikely to implicate that standard, and it provides no example of such a prosecution. Appeal at 6.

CMA does note that the court in the *De Fernandez* case, cited by the ALJ, later granted a request for use of a Hague procedure, Appeal at 8-9 & n.9, but the Order CMA cites expressly did not foreclose ordinary discovery of materials located in the United States. On the contrary, the Order stressed that use of the Hague procedure it permitted was for the "limited purpose" of getting documents or information "originating in and located in France" — a standard that CMA has not shown is met here as to any specific document, much less as to every document responsive to MTL's requests. See Appeal Exh. 8, Order Granting Defendants' Memorandum Supporting Request for International Assistance and Appointment of a Commissioner, *De Fernandez*, Civ. No. 21-22778 (S.D. Fla. Apr. 6, 2023) (Doc. 128) at 2. The *De Fernandez* court's Order also made clear that it did not relieve any party of its discovery obligations under the Federal Rules, "including production of documents and information within the possession, custody or control of Defendant CMA CGM (America) LLC and any agents or representatives of CMA CGM S.A. (France) located in the United States or any other jurisdiction not subject to the French Discovery laws or Blocking Statute." *Id.* at 4. CMA is subject to similar discovery obligations under the FMC's rules.

CMA argues broadly that the Commission lacks the power to forego use of Hague Convention procedures as described in the *Aerospatiale* case because the FMC is not a federal court, Appeal at 10-12, but CMA provides no authority actually saying that. Instead,

it only provides general statements making the obvious points that the agency is not a court and that its powers are defined by Congress. Moreover, as noted above, those powers do authorize the FMC to order discovery and direct it to follow the Federal Rules to the extent possible, 46 U.S.C. § 41303(a)(2) — as CMA admits, Appeal at 14 n.13 — and the FMC has established extensive rules of practice and procedure that protect parties appearing before it, at 46 C.F.R. § 502.

CMA also argues that the use of a procedure for consultation through the U.S. Department of State described in 46 U.S.C. § 41108(c)(2) is required here, Appeal at 12-14, but that claim is incorrect. As an initial matter, although CMA asserts that the procedure is required, it also says that the procedure is actually “unnecessary” if the agency simply follows a Hague procedure as CMA urges. Section 41108(c)(2) provides that if a common carrier resisting an FMC discovery order “alleges that information or documents located in a foreign country cannot be produced because of the laws of that country, the Commission shall immediately notify the Secretary of State of the failure to comply and of the allegation relating to foreign laws.” The statute then directs that the Secretary of State “shall promptly consult with the government of the nation within which the information or documents are alleged to be located” to help the FMC obtain the material. CMA cites no case precedent mandating use of the section 41108(c)(2) procedure.

In any event, CMA’s claims are not clear and developed enough to require a consultation under 46 U.S.C. § 41108(c)(2) at this stage. In particular, CMA provides no clear showing that specific requested documents or categories of documents are “located” in France only, as section 41108(c)(2) would require so as not to permit parties to evade discovery simply by sending documents overseas, or that the documents are unavailable in the United States.

2. CMA Has Failed to Show That
Aerospatiale Requires the Use of Hague
Procedures Here

CMA argues that comity requires use of Hague Convention procedures in this case, relying on *Aerospatiale* and an analysis of the factors it identified. Appeal at 14-19. But a core feature of that case is that Hague procedures are not mandatory, 482 U.S. at 540-41, and as the ALJ found, the relevant factors actually weigh against the use of such procedures here, Order at 4.

In addressing the importance of the requested documents to the litigation (factor 1), CMA claims that MTL “already has most” of the documents it seeks. Appeal at 16. But CMA does not mention the demurrage-related documents MTL specifically mentioned needing, Motion Response at 3-4; Order at 2, nor the last two MTL requests, which seek certain information beyond the eight containers at issue, *see* Appeal Exhs. 4-5. In any event, vague claims that a litigant “already has most” of the documents it requests in discovery do not establish that the documents sought are unimportant to the litigation. CMA has not shown that the ALJ’s determination that the documents are important, especially since CMA has produced none, Order at 4, was an abuse of discretion.

CMA argues that the ALJ mistakenly believed that the specificity factor (factor 2) referred to the CMA’s own request for Hague procedures, but that the proper analysis, of the specificity of MTL’s document requests, shows them to be “not at all specific” but “blunderbuss” and therefore appropriate for Hague procedures. Appeal at 16-17. First of all, the ALJ had no means of analyzing the specificity of MTL’s requests in her March 28 Order, since CMA failed to provide them until its April 7 Appeal. Leaving aside CMA’s potential waiver on this point, it is true that the ALJ’s discussion of the *Aerospatiale* factors includes a statement that CMA’s request to “block all discovery related to these containers is overbroad.” It seems possible that this statement was related at least in part to factor 1 and was meant to emphasize that the need for

discovery is great in a situation where none has been provided. But in any event, a review of the actual MTL requests does not support CMA's claim that they are so broad as to call strongly for Hague procedures. Appeal Exhs. 4-5. As noted above, five of the seven requests focus closely on documents related to the eight specific shipments at issue, with only the last two seeking several years of documents regarding similar complaints made to CMA and CMA revenue from demurrage- and detention-related charges. In light of the above, and the weight of the other factors, any perceived error here would be harmless.

Turning to factor 3, where the information at issue originated, CMA asserts vaguely that "[s]ome of the requested documents most likely originated in the United States," while "[o]thers did not," but that this is irrelevant because all that matters under French law is that the documents are "owned by" CMA. Appeal at 18. However, as the ALJ noted, the record contains no indication that the requested materials originated in France. Order at 4. Nor does CMA claim that any of the requested documents are unavailable in the United States. And a claim that CMA can avoid producing materials that originated in or are maintained in the United States simply because copies may exist in France, or because a French company may be viewed as "owning" the documents, could easily undermine FMC and other federal discovery procedures. CMA provides no support in United States law for such a position, and in fact one of its own authorities, the *De Fernandez* Order, is to the contrary. See Appeal Exh. 8 at 2, 4.

With regard to factor 4, the availability of alternative means of securing the information, CMA argues that the Hague procedures provide a good alternative. Appeal at 18. However, the ALJ properly understood this factor to involve whether there is an alternative to the Hague procedures, and as she noted, "CMA is a party to this proceeding, is an FMC-regulated entity, and is the most appropriate entity to provide these documents, although its American subsidiary could also provide the documents." Order at 4. In other words, the available alternative is that CMA simply produces responsive

material under ordinary FMC discovery procedures.

Finally, with regard to the balance of interests of the United States and the “state where the information is located” (factor 5), CMA faults the ALJ for not fully explaining her conclusion, and it claims that in any case French interests prevail here, relying on precedent describing France’s interests in protecting its citizens and controlling access to information within its borders. Appeal at 18-19. It is true that the ALJ did not provide a direct explanation of her determination that “noncompliance with the [document] request would undermine important interests of the United States.” Order at 4. But those interests are easy to discern from the context. As the Order made clear, CMA is claiming the right to provide no documents whatsoever in response to a request by the complainant, in an adjudication at the federal agency charged with enforcing U.S. maritime law, using the ordinary discovery procedures detailed in that agency’s regulatory structure, as mandated by Congress. In terms of the French interests at stake, it is difficult to see how any important French interests are implicated by the disclosure of materials related to eight containers shipped from the United States by U.S. companies to ports outside France. Indeed, CMA has not even shown that the materials are “located” outside the United States, much less in France.

CMA does point to one other FMC case, Docket No. 21-05, in which a Hague procedure was attempted, suggesting that shows Hague procedures are appropriate in FMC matters and do not impair U.S. interests. Appeal at 19-20 nn.16-17. However, the use of a Hague procedure in that pending case (in which a Swiss court denied a request for documents from the ALJ on the basis that the request was “outside the scope of the Convention,” FMC 21-05, January 13, 2023 Initial Decision on Default at 1) was the result of a joint motion of the parties. It provides no support for CMA’s position that such a course is mandatory in the current case.

Finally, CMA emphasizes what it considers to be the speed and ease of the Hague procedures. Appeal at 20. But even if the

Commission were to accept such assurances, that would not be a basis for CMA to avoid the FMC's own well-established discovery procedures.

III. CONCLUSION

The Commission hereby:

- (1) **DENIES** Respondent CMA's April 7, 2023 Appeal from Discovery Ruling Addressed to Persons and Documents Located in a Foreign Country; and
- (2) **AFFIRMS** the ALJ's March 28, 2023 Order on Respondent's Motion for Letter of Request and Extension of Time.

By the Commission.

Amy Strauss
Amy Strauss
Acting Secretary

Commissioner BENTZEL, concurring:

I concur with the sentiments and frustration expressed by Commissioner Vekich, and would further suggest that we explore the potential for process that would explicitly require regulated entities to consent with Commission process as a condition to operating in FMC regulated trades.

Commissioner VEKICH, concurring:

Although the ALJ did not impose sanctions against the Respondent, I believe doing so may have been warranted in this

proceeding. The Federal Rules of Civil Procedure are followed by the Commission to the extent that they are consistent with sound administrative practice. 46 C.F.R. § 502.12. Federal Rule 26(g) provides that where an attorney without adequate justification makes discovery responses or objections that are legally unwarranted or interposed for an improper purpose, such as needlessly causing delay or increasing costs, a court “must” impose an appropriate sanction, which “may include an order to pay the reasonable expenses, including attorney’s fees, caused by the violation.” Further, Federal Rule 37 provides for comparable sanctions for unjustified failures to cooperate with discovery in particular contexts, including motions to compel and failures to comply with court orders. Outside of the discovery context, Federal Rule 11 provides that a court may impose comparable sanctions on an attorney in the event of filings made for an improper purpose or that are legally unwarranted.

Litigants before the Commission are entitled to discovery to prove their allegations. Respondent’s argument that the Hague Convention bars it from providing any document discovery in a civil proceeding before the Commission except through the Convention’s procedures raises serious concern. Respondent caused substantial delay and additional litigation expense to the Complainant which, in my view, may have been based on frivolous arguments. I believe the Commission should consider whether the arguments advanced by the Respondent warrant sanctions.